

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rose Lantigua (S14)	Team: Squad #14	CCRB Case #: 201704427	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/02/2017 3:42 PM	Location of Incident: 34th Avenue and Francis Lewis Boulevard	18 Mo. SOL 12/2/2018	Precinct: 111		
Date/Time CV Reported Fri, 06/02/2017 4:47 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 06/02/2017 4:47 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dean Kekovski	25768	938757	111 PCT
2. POM Edward Stine	04849	948107	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dean Kekovski	Discourtesy: Police Officer Dean Kekovski spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Dean Kekovski	Abuse: Police Officer Dean Kekovski stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Edward Stine	Abuse: Police Officer Edward Stine stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unsubstantiated
D . POM Dean Kekovski	Abuse: Police Officer Dean Kekovski threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . POM Dean Kekovski	Discourtesy: Police Officer Dean Kekovski gestured discourteously toward § 87(2)(b)	E . Unsubstantiated

Case Summary

On June 2, 2017, § 87(2)(b) filed this complaint online with the CCRB.

On June 2, 2017, at approximately 3:42 p.m., § 87(2)(b) drove eastbound on 35th Avenue in Queens. § 87(2)(b)'s girlfriend, § 87(2)(b) sat in the front passenger's seat. Police Officer Edward Stine and Police Officer Dean Kekovski of the 111th Precinct pulled up in their unmarked vehicle and stopped in the middle of the street, perpendicular to § 87(2)(b)'s vehicle. § 87(2)(b) stopped his vehicle and honked his horn. PO Kekovski allegedly said, "What the fuck is your problem?" (**Allegation A**) § 87(2)(b) told PO Kekovski that the officers had just cut him off. PO Kekovski allegedly responded, "What the fuck did you just say?" and engaged his vehicle's turner lights (**within Allegation A, Allegations B and C**) PO Kekovski exited his unmarked vehicle and said, "Shut the fuck up, otherwise you're going to get arrested" (**within Allegation A and Allegation D**). § 87(2)(b) pointed his phone at the officers, but was unable to record the incident. PO Kekovski smirked at § 87(2)(b) and allegedly said, "Asshole. You think you're smart" (**within Allegation A**)

PO Stine and PO Kekovski drove off, but § 87(2)(b) followed and drove past them. PO Stine allegedly showed § 87(2)(b) his right middle finger and said, "Asshole" (**within Allegation A and Allegation E**).

No arrests or summonses resulted from this incident.

There is no video evidence in this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of August 31, 2017, § 87(2)(b) has not filed a Notice of Claim with the New York City Comptroller's Office regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- PO Kekovski has been a member-of-service for 12 years, and has five allegations within two cases. In case number 201111489, a discourtesy allegation was unsubstantiated. § 87(2)(g) (see officer history).
- This is the first CCRB complaint filed against PO Stine, an eight-year-member-of-service (see officer history).

Potential Issue

§ 87(2)(b) refused to provide contact information for his girlfriend, § 87(2)(b) and due to her common last name and unknown date of birth, agency resources could not be utilized to identify her (see IAs for contact attempts).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) said the officer who allegedly spoke discourteously to him, threatened to arrest him, and gestured discourteously toward him sat on the passenger's side of the unmarked vehicle (Board Review 05). PO Stine and PO Kekovski both identified PO Stine as the driver and PO Kekovski as the recorder (Board Review 08) (Board Review 09). § 87(2)(g)

Allegation A -Discourtesy: Police Officer Dean Kekovski spoke discourteously to § 87(2)(b)

Allegation B –Abuse of Authority: Police Officer Dean Kekovski stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C–Abuse of Authority: Police Officer Edward Stine stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation D –Abuse of Authority: Police Officer Dean Kekovski threatened to arrest § 87(2)(b)

Allegation E–Discourtesy: Police Officer Dean Kekovski spoke discourteously to § 87(2)(b)

§ 87(2)(b) said that PO Kekovski and PO Stine made an abrupt U-turn and stopped their vehicle in the middle of the street, blocking his vehicle's path. § 87(2)(b) came to an abrupt stop and honked his horn at PO Kekovski and PO Stine. PO Kekovski rolled down his window, put his hands up, and allegedly said, "What the fuck is your problem?" § 87(2)(b) told PO Kekovski that he cut him off and asked if he was blind. § 87(2)(b) initially said that PO Kekovski asked him to repeat himself without any expletives, but then said that PO Kekovski allegedly responded, "What the fuck did you just say?" and asked if there was a problem. § 87(2)(b) initially said that he told PO Kekovski that the officers could have put their turning signal on, but later said he did not respond.

PO Kekovski and PO Stine continued to block § 87(2)(b)'s path and engaged their vehicle's turner lights. PO Kekovski exited his vehicle and allegedly said, "Shut the fuck up, otherwise you're going to get arrested." § 87(2)(b) pointed his cell phone at the officers to record them, but before he could do so, PO Kekovski reentered the vehicle and allegedly said, "Asshole. You think you're smart." § 87(2)(b) followed the officers around the corner and passed their vehicle. PO Kekovski allegedly showed § 87(2)(b) his right middle finger and said, "Asshole."

As previously discussed, § 87(2)(b) was unavailable to the investigation.

PO Kekovski and PO Stine both acknowledged that they engaged their vehicle's turner lights before making the U-turn. PO Stine said this was done to stop other vehicles from getting in their way as they turned into the opposite lane to conduct a vehicle stop unrelated to § 87(2)(b)

PO Kekovski and PO Stine both said that PO Kekovski extended his open palm out of the window. PO Kekovski said he also told the drivers of the other vehicles, “I’m sorry. We’re just going to make a quick U-turn and be on our way.” PO Kekovski said that § 87(2)(b) identified via investigation, was a driver in one of these vehicles, not the vehicle the officers were stopping, and that he was “irate” and screamed at § 87(2)(b) identified via the investigation, to get his camera so he could record the officers. However, PO Kekovski denied that he used profanity, threatened to arrest, and gestured discourteously toward § 87(2)(b) and PO Stine denied witnessing PO Kekovski do any of these things.

§ 87(2)(g) It is therefore recommended that **Allegations A** through **E** be closed as **unsubstantiated**.

Squad: **14**

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date